

HEADNOTE

- “1. In a case of alleged infringement in two or more countries, it cannot generally be concluded that an unreasonably long delay has occurred where an application for provisional measures is filed within two months, having regard to the necessary prior examination of whether the defendant's embodiments actually make use of the teachings of the patent in suit and whether enforcement would be promising, as well as with regard to appropriate serious case preparation.*
- 2. For the interpretation of the patent or specific features in the patent claim, the principles established by the Court of Appeal in UPC_CoA_335/2023 are to be applied. This applies equally to the assessment of infringement and the validity of a European patent. Adequate protection for the patent proprietor and the associated sufficient legal certainty for third parties are determined essentially by the wording chosen by the patent proprietor in light of the description and drawings. The interpretation may result in a broader or narrower understanding.*
- 3. Due to the summary nature of the validity examination in provisional measures proceedings, a comprehensive examination of all validity challenges as would occur in an invalidation proceeding is not possible. Rather, the number of arguments raised against validity must generally be reduced to the three strongest from the respondent's perspective.*
- 4. Where the prevailing party does not put forward weighty reasons (e.g., bearing the insolvency risk of the opposing party), there is in any event no basis for ordering provisional cost reimbursement in provisional measures proceedings where, as here, main proceedings must follow the interlocutory proceedings.”*

COURT
Court of Appeal Luxembourg

PATENT

KEYWORDS

PROCEEDINGS
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Application for provisional measures

Unreasonably long delay

Interpretation of patent claim

Legal validity of the patent subject to the inj...

SUMMARY

The Court of Appeal in Luxembourg issued a procedural order regarding provisional measures. According to the headnotes of the decision, filing an application for provisional measures within two months is generally not considered an unreasonable delay when the applicant must first examine whether the defendant's product actually uses the patented teachings and prepare the case appropriately. When interpreting patent claims, courts must apply the principles established in UPC_CoA_335/2023, whereby the wording chosen by the patent proprietor in light of the description and drawings determines the scope of protection, which may be understood more broadly or narrowly. Because validity examinations in provisional measures proceedings are summary in nature, respondents must typically limit their validity challenges to the three strongest arguments rather than raising all possible objections. Where the prevailing party in a provisional measures proceeding has not demonstrated weighty reasons such as insolvency risk, there is no basis for ordering the losing party to reimburse costs during the interlocutory stage before main proceedings commence.